

SENATE No. 2454

The Commonwealth of Massachusetts

PRESENTED BY:

John C. Velis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to unmanned aerial vehicles in the commonwealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>John C. Velis</i>	<i>Hampden and Hampshire</i>	
<i>Kelly W. Pease</i>	<i>4th Hampden</i>	<i>3/21/2025</i>

SENATE No. 2454

By Mr. Velis, a petition (accompanied by bill, Senate, No. 2454) of John C. Velis for legislation relative to unmanned aerial vehicles in the Commonwealth. Transportation.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2308 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to unmanned aerial vehicles in the commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 90 of the General Laws, as so appearing in the 2022 official edition, is hereby
2 amended by inserting after section 63 the following new section:-

3 Section 64. (a) As used in this section the following words shall have the following
4 meanings, unless the context clearly requires otherwise:-

5 “Critical facility”, any of the following: (1) a critical infrastructure facility as defined in
6 section 369 of the federal aviation administration extension, safety and security act of 2016 and
7 the federal aviation administration reauthorization act of 2018; (2) a commercial distribution
8 center; (3) a federal, state, county, or municipal court; (4) a police station, sheriff's office, state
9 highway patrol station, or premises controlled by the bureau of criminal identification and
10 investigation; (5) a federal, state, county, or municipal jail or prison or any other facility in which

persons are incarcerated; (6) a federal or state military installation or facility; or (7) a hospital that receives air ambulance services.

“Operate”, to pilot, fly, control, direct, or program the flight of an unmanned aircraft or unmanned aircraft system.

“Unmanned aircraft”, an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft.

“Unmanned aircraft system”, an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system.

(b)(1) Except as provided in subsection (b)(2) of this section, no person shall operate an unmanned aircraft or unmanned aircraft system in the air space over this state if the operation is prohibited by either federal law or federal regulations, including any federal aviation administration regulations.

(2) Subsection (b)(1) of this section does not apply to a person authorized by the federal aviation administration to operate an unmanned aircraft or unmanned aircraft system in a manner that otherwise violates the federal law or regulations, provided that person's operation of the unmanned aircraft or unmanned aircraft system complies with the terms of the administration's authorization.

(3) A law enforcement officer who observes a violation of an FAA rule or regulation committed by an operator of an unmanned aircraft or unmanned aircraft system may order the offender to state their true name and address and to immediately cease the use of said unmanned

aircraft or unmanned aircraft system. Whoever, upon such order, refuses to state their name and address or whoever states a false name and address, or a name and address not in the ordinary use shall be punished by a fine of not less than twenty dollars nor more than fifty dollars. An offender who refuses to state their true name and address may be arrested without a warrant for such refusal, but no person shall be arrested without a warrant for any other FAA rule or regulation violation committed while operating an unmanned aircraft or unmanned aircraft system.

(c) (1) No person shall equip or operate an unmanned aircraft or unmanned aircraft system armed with a weapon capable of causing serious bodily injury or death or is otherwise capable of firing or releasing a projectile designed to cause serious bodily injury or death. Persons convicted of unauthorized operation of an unmanned aircraft or unmanned aircraft system under this paragraph shall be punished by a fine of not more than two-thousand dollars or by imprisonment in a house of correction for not more than one year or both. Federal, state, and municipal public safety explosive ordinance personnel are exempted from this provision for the limited purpose of use of an unmanned aircraft or unmanned aircraft system for the disposal of explosive ordinance.

(2) No person shall operate an unmanned aircraft or unmanned aircraft system in a manner so as to interfere with or disrupt the flight of manned aircraft, or otherwise impede the normal course of operations of any international, regional, municipal, or general aviation airport. Persons convicted of unauthorized operation of an unmanned aircraft or unmanned aircraft system under this paragraph shall be punished by a fine of not more than one-thousand five-hundred dollars or by imprisonment in a house of correction for not more than one year or both. Unauthorized operation of an unmanned aircraft or unmanned aircraft system under this

paragraph which results in damage to a manned aircraft in flight or causes said aircraft to crash shall be punished by a fine of not more than ten-thousand dollars or by imprisonment in a house of correction for not more than two and one-half years or both.

(d) No person shall operate an unmanned aircraft or unmanned aircraft system in a manner that disrupts, interrupts, or impairs the operations or activities conducted by law enforcement personnel, fire department personnel, or emergency medical services personnel while such personnel is on duty.

(e)(1) No person shall operate an unmanned aircraft or unmanned aircraft system to photograph, record, or loiter over or near a critical facility with purpose to further another criminal offense, the elements of which involve causing physical harm to another person or causing another person to believe that the offender will cause physical harm to that person.